

Plaintiffs’ Motion to Compel was granted in part and denied in part. Characterizing the filing of at least partially meritorious discovery motion as optional is disingenuous, as is Defendant’s contention that the Motion to Compel served no purpose other than to increase Plaintiffs’ counsel’s costs. Plaintiffs incurred these filing fees to protect their rights with regard to discovery and ensure Defendant complied with its discovery obligations. Thus, these filing fees were reasonably necessary to the conduct of the litigation.

Defendant also moves to tax \$42.44 from the claimed filing fees, arguing that these EFM and payment processing fees are unnecessary luxuries and did not advance Plaintiffs’ case. “Fees for the electronic filing or service of documents through an electronic filing service provider if a court requires or orders electronic filing or service of documents.” (Code Civ. Proc., § 1033.5(a)(14).) Here, electronic filing by represented parties is required. Thus, the EFM and paying processing fees were reasonably necessary to the conduct of the litigation. Further, they are reasonable in amount.

Thus, the Motion to Tax as to Item 1 is **DENIED**.

Item 8 – Expert Fees

Defendant argues \$275.00 should be taxed from the claimed expert witness fees because it was billed for case intake and analysis and was not reasonably incurred in the conduct of the litigation. Defendant argues this kind of pre-evaluation intake charge is the type of overhead expense that firms routinely absorb. Defendant also argues that \$116.00 billed for travel time must be taxed because expert travel is a routine overhead cost of doing business for an inspection and the cost was not reasonably incurred.

The Court finds that the case intake and analysis cost was incurred in Plaintiffs’ retention of an expert for the vehicle inspection. Plaintiffs’ retention of an expert for the inspection is plainly reasonable and Defendant’s argument that this cost was not reasonably incurred is not persuasive.

As to the latter argument, Defendant cites *Ladas v. California State Auto. Assn.* (1993) 19 Cal.App.4th 761. While *Ladas* states that “[r]outine expenses for local travel by attorneys or other firm employees are not reasonably necessary to the conduct of the litigation” (*id.* at pp. 775-776), Plaintiffs’ expert here is not an attorney or firm employee. Further, an expert must attend a vehicle inspection in person and, therefore, the Court finds the travel costs were required and reasonably necessary.

Thus, the Motion to Tax as to Item 8 is **DENIED**.

9. 30-2025-01518230

**McKay vs. California
Department of Parks
and Recreation**

**1. Case Management Conference
2. Demurrer to Complaint
3. Motion to Strike Portions of Complaint**

Defendants California Department of Parks and Recreation and Brian Carlson (“Defendants”) filed a demurrer and motion to strike, attacking the original complaint filed on October 10, 2025.

The demurrer and motion to strike are **OFF CALENDAR AS MOOT** pursuant to Code of Civil Procedure section 472(a).

Code of Civil Procedure section 472(a) states:

		“A party may amend its pleading once without leave of the court at any time before the answer, demurrer, or motion to strike is filed, or after a demurrer or motion to strike is filed but before the demurrer or motion to strike is heard if the amended pleading is filed and served no later than the date for filing an opposition to the demurrer or motion to strike.” (Code Civ. Proc., § 472, subd. (a).) Here, the last day to file an opposition to the demurrer and motion to strike was September 3, 2026. On September 2, 2026, Plaintiff Zachary McKay filed a First Amended Complaint. (ROA 41.) Given the above, the demurrer and motion to strike are OFF CALENDAR AS MOOT. Plaintiff to give notice.
10.	30-2026-01563392 Everon, LLC vs. Federal Technology Solutions, Inc	1. Case Management Conference 2. Motion-Other (for Order Declaring Rights to Withheld Funds Pursuant to Civil Code Section 9408) Plaintiff Everon, LLC’s (“Everon”) Motion for Determination of Rights Pursuant to Civil Code § 9408 is DENIED. Everon seeks an order pursuant to Civil Code section 9408 for a determination of rights of the parties following the service of a stop payment notice, affidavit, and counter-affidavit. More specifically, Everon seeks an order that funds withheld by Newport pursuant to a stop payment notice from Defendant Federal Technology Solutions, Inc. (“FTSI”) in the amount of \$429,367.06 be returned to Everon. Everon seeks relief pursuant subsections (c) and (d) of Section 9400, which provides that a direct contractor may obtain release of funds withheld pursuant to a stop payment notice under the summary proceeding provided by statute on any of the following grounds: (c) the amount of the claim stated in the stop payment notice is excessive (d) there is no basis for the claim stated in the stop payment notice (Civ. Code §9400.) At the hearing on a motion under this section, the direct contractor, in this case Everon, has the burden of proof. The Court finds that Everon has not met its burden with respect to subsection (d)—i.e., that there is <i>no</i> basis for the claim stated in the stop payment notice—because Everon only contends that part of the amount requested is improper. An amount that is too high is not considered <i>invalid</i>—the amount can be reduced. (<i>See, e.g., Basic Modular Facilities, Inc. v. Ehsanipour</i> (1999) 70 Cal.App.4th 1480, 1485 (trial court has authority to reduce an excessive lien to its proper amount; actual amount due presents a question of fact for the trial court).) Further, as to Everon’s claim that the amount stated in the stop payment notice is excessive, the Court is not persuaded by Everon’s evidence. The crux of the dispute is that Everon claims FTSI is improperly seeking payment for work that was included in its bid, but which FTSI now seeks a change work order for (i.e., payment beyond the amount set forth in the bid). FTSI denies that this work, which involved conduit installation, was part of its bid, as FTSI contends that the information